



Australian
Competition &
Consumer
Commission

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10 May 2016

Luke Woodward
Partner
Gilbert + Tobin

Liza Carver
Partner
Herbert Smith
Freehills

Jacqueline Downes
Partner
Allens

Linda Evans
Asciano

By email: LWoodward@qtlaw.com.au; Liza.Carver@hsf.com;
Jacqueline.Downes@allens.com.au; Linda_Evans@asciano.com.au

Dear Mr Woodward, Ms Carver, Ms Downes and Ms Evans

Re: Shareholding disclosure - proposed acquisition of Asciano Limited

As you are aware, the ACCC is currently reviewing the proposed acquisition of the shares and assets of Asciano Limited (**Asciano**) by various members of a consortium comprising Brookfield Infrastructure Partners L.P. (and certain of its affiliates) (**Brookfield**), Qube Holdings Limited (**Qube**), Global Infrastructure Management, LLC (on behalf of itself and its managed funds and clients) (**GIP**), Canada Pension Plan Investment Board (**CPPIB**), CIC Capital Corporation (**CIC Capital**), British Columbia Investment Management Corporation (**bciMC**), GIC Private Limited (**GIC**) and Qatar Investment Authority (**QIA**) (collectively, the **Consortium**) (together, the **proposed acquisition**).

Mr Mick Keogh, who has recently been appointed a Commissioner of the ACCC, has declared to the Chairman of the ACCC that he holds a shareholding in Qube Limited valued at approximately \$7,800.

After consideration by the ACCC Chairman and Commissioners excluding Mr Keogh, the Commissioners have concluded that the shareholding does not amount to a material personal interest for the purposes of section 29 of the Public Governance, Performance and Accountability Act 2015 (Cth), nor a pecuniary interest which could conflict with the proper performance of Mr Keogh's functions in relation to the ACCC's consideration of the proposed acquisition for the purposes of section 17 of the Competition and Consumer Act 2010 (Cth).

In these circumstances, it has been determined by the Chairman and Commissioners that Mr Keogh is able to take part in the ACCC's consideration of the proposed acquisition. Accordingly, Mr Keogh will now take part in the ACCC's consideration of the proposed acquisition.

The purpose of this letter is to advise the parties concerned in the matter of Mr Keogh's shareholding and the Commission's determination in relation to the disclosure. To ensure transparency in this regard, the ACCC proposes to publish this letter on the mergers public register.

Please contact me on (02) 6243 1226 if you wish to discuss this matter.

Yours sincerely

A handwritten signature in dark ink, appearing to be 'Rami Greiss', written in a cursive style.

Rami Greiss
Executive General Manager
Merger and Authorisation Review